



SAN MATEO COUNTY SHERIFF'S OFFICE

DATE: August 27, 2026
TO: San Mateo County Supervisor Speier
FROM: San Mateo County Sheriff Binder *KB*
SUBJECT: ALPR Inquiry

Thank you for your inquiry regarding the San Mateo County Sheriff's Office use of Flock's Automated License Plate Reader (ALPR) technology. The Sheriff's Office is currently finalizing its formal response to the Civil Grand Jury's report and will make its response public. Furthermore, please see answers to your questions below.

1. The Sheriff's Office conducts monthly audits within the Flock system to ensure the technology is being used for its intended purpose and in alignment with California law and Sheriff's Office policy. To generate these audits, staff must manually initiate them through the Flock platform. Flock has an interface whereby staff enters the date range required for the audit and a report is then generated, which typically includes thousands of rows of data. In the past, Sheriff's Office staff would have to manually review each line in detail to ensure compliance with SB 34. We understand that Flock is working to automate their audit tool, which would allow agencies to schedule audits. The audits would then automatically be generated at the specified interval, eliminating the manual step of generating them. This tool is not yet active.

- a. Our team is in the testing phase of utilizing a secure AI assistance program to review the enormous amounts of data included in these Flock audits. With the use of the AI assistance program, what formerly amounted to several days of work has been reduced to hours. All findings from the audits conducted by AI are reviewed by Sheriff's Office staff to ensure accuracy.

In the testing phase, the AI tool is proving to be valuable. It allows the Sheriff's Office to conduct more efficient audits to ensure that staff engages within the lawful parameters and policy guardrails that govern its use of ALPR technology. This tool also streamlines staff's ability to ensure that California agencies that have been granted permission to access ALPR data also utilize the data within the same lawful parameters.

- b. Sheriff's Office ALPR audits are conducted monthly, and managers are obtaining the information needed. During these audits, managers seek to determine whether staff stays within the legal boundaries of SB 34, as well as Sheriff's Office policy. All searches are reviewed to ensure Sheriff's Office staff are not sharing ALPR data with out-of-state or federal agencies, and that staff are not utilizing the data to enforce or assist any agency in enforcing civil immigration law, or in conducting investigations into protected first

amendment assembly or reproductive rights related activity. These audits also allow for a review of the search parameters used by California agencies that have been granted permission to access ALPR data. This helps the Sheriff's Office ensure the lawful use of the data by those agencies.

- c. Based on our comprehensive audits this calendar year, **there have been no findings of unauthorized access or sharing by Sheriff's Office personnel.** The Sheriff's Office has become aware of other police agencies' data having been accessed by or on behalf of federal agencies or law enforcement agencies outside of California. These cases have been well reported in the public square.
2. The Sheriff's Office is aware of other agencies' management of their ALPR contracts. Even though Flock has made advances to assist with technological solutions for better safeguards moving forward, our team will still research and consider all options as a matter of practice and due diligence, as with any contract, when this contract is up for renewal.

ALPR technology has become an essential tool for successful case resolution, recovering missing persons, retrieving stolen vehicles, and investigating serious violent crimes with substantially greater speed and efficiency. However, it is absolutely paramount that in our effort to help victims and provide for the adjudication of criminal offenders, that this technology is only used strictly within the parameters of the law and Sheriff's Office policy. Sheriff's Office ALPR policy is posted on its website to provide transparency for the public into the guardrails that personnel work within to ensure this technology is not misused.